

		declaration is without proper foundation and insufficient. (<i>Islamic Republic of Iran v. Pahlavi</i> (1984) 160 Cal.App.3d 620, 627; see also Declaration of Michael R. Perry ¶ 7.) Plaintiff shall give notice.
313	<i>Russell vs. Tsumpes</i>	Before the Court is a Motion to Quash Service of Summons filed by defendant Textron Aviation Inc. (TAI). The motion is GRANTED. A defendant may move to quash service of summons on the ground of lack of jurisdiction of the court over him or her. (Code Civ. Proc., § 418.10, subd. (a)(1).) The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10. (Code Civ. Proc., § 581(h).) Here, TAI asserts the court lacks personal jurisdiction as it relates to Plaintiff's complaint. Defendant submits evidence showing its principal place of business is in Kansas, it designs and manufactures aircraft in Kansas and not in California, it produces manuals for general aviation aircraft in Kansas, and not in California, and it has not targeted California for specific advertising. (Goeken Decl. ¶¶4-8) "When a nonresident defendant challenges personal jurisdiction the burden shifts to the plaintiff to demonstrate by a preponderance of the evidence that all necessary jurisdictional criteria are met. [Citation.] This burden must be met by competent evidence in affidavits and authenticated documentary evidence. An unverified complaint may not be considered as an affidavit supplying necessary facts. [Citation.]" (<i>Ziller Elecs. Lab GmbH v. Superior Ct.</i> (1988) 206 Cal.App.3d 1222, 1232-1233.)

	Plaintiff asserts TAI is subject to both general and specific jurisdiction. “For an individual, the paradigm forum for the exercise of general jurisdiction is the individual’s domicile; for a corporation, it is an equivalent place, one in which the corporation is fairly regarded as at home.’ [Citation.] A court with general jurisdiction may hear any claim against that defendant, even if all the incidents underlying the claim occurred in a different State.” (<i>Bristol-Meyers Squibb Co. v. Superior Court</i> (2017) 582 U.S. 255, 262.) Here, the only evidence submitted in opposition to the motion is the declaration of plaintiff’s counsel whereby plaintiff submits four exhibits counsel found on the internet. These four exhibits do not establish general jurisdiction. Exhibit A is a copy of a California Secretary of State filing showing TAI is qualified to do business in California. This is insufficient. (<i>DVI, Inc. v. Superior Ct.</i> (2002) 104 Cal. App. 4th 1080, 1095 [“designation of an agent for service of process and qualification to do business in California alone are insufficient to permit general jurisdiction except for lawsuits arising out of the foreign corporation’s business conducted in the state.”].) Exhibits B & D are copies of screen shots taken by counsel which show maps supposedly identifying service facilities owned and operated by TAI in California. Several of the companies identified appear to be separate from TAI as they have different names. Further, the mere existence of service facilities, without more information, is insufficient to establish general jurisdiction. For example, there is no evidence as to how the service centers relate to TAI’s overall operations, number or percentage of total employees in California, percent of revenue, etc., such that TAI would be
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“essentially at home” in California. (See, e.g., *BNSF Ry.Co. v. Tyrrell* (2017) 581 U.S. 402, 413.)

Exhibit C appears to be a press release which references a prospective sale of airplanes to a university in California. Plaintiff’s argument that “it is clear that Textron employs salespeople who are regularly engaged in selling aircraft to California residents” (Opp at 3:24-25) is not supported by the evidence.

Overall, the evidence submitted is insufficient to establish general jurisdiction over TAI.

For the state to exercise specific jurisdiction over a defendant consistent with due process, “the defendant’s suit-related conduct must create a substantial connection with the forum State.” (*ViaView, Inc. v. Retzlaff* (2016) 1 Cal.App.5th 198, 216.) Such “specific” personal jurisdiction requires a showing of: (1) purposeful availment—the out-of-state defendant purposefully established contacts with the forum state; (2) arising out of—the plaintiff’s cause of action “arises out of” or is “related to” the defendant’s contacts with the forum state; and (3) reasonableness—the forum’s exercise of personal jurisdiction in the particular case comports with “fair play and substantial justice.” (*Burger King Corp. v. Rudzewicz* (1985) 471 US 462, 477-478.)

Here, plaintiff has failed to submit any evidence establishing specific jurisdiction. The only declaration submitted is from counsel who does not address how TAI’s contact with California gives rise to the subject lawsuit. There is no declaration from Mr. Russell as to any interaction he had with TAI. Accordingly, plaintiff has failed to meet his burden to establish specific jurisdiction.

		For the foregoing reasons, the motion to quash is GRANTED and plaintiff's complaint against Defendant Textron Aviation Inc. is DISMISSED WITHOUT PREJUDICE. Defendant shall give notice.
314	<i>Kuljis vs. Pagalidis</i>	The "Motion for Consolidation or Stay of Related Unlawful Detainer Action" filed 26 by Plaintiff Anthony Michael Kuljis (Kuljis) is DENIED As an initial matter, the motion does not appear to have been served on counsel for all defendants. Additionally, the motion presents no authority for the relief requested. Parties shall appear for the CMC to discuss case status. Counsel for Kuljis shall give notice.